

MUTUAL NON-DISCLOSURE AGREEMENT

This confidential Non-Disclosure Agreement, made and entered into [DATE], by and between [SUBCONTRACTOR LEGAL NAME], a [ENTITY TYPE / STATE OF ORGANIZATION] located at [SUBCONTRACTOR ADDRESS] ("Subcontractor"), and Strategic Operations Solutions LLC, a Connecticut limited liability company located at 74 Underhill Road, Sandy Hook, CT 06482 ("Client").

WITNESSETH: Whereas, Subcontractor and Client (the "Parties") desire to engage in discussions concerning consulting services, operational excellence, business process improvement, artificial intelligence initiatives, automation, technology strategy, cost optimization, and other potential business opportunities between the Parties; and

Whereas, the Parties have proprietary and confidential information regarding their respective operations including, but not limited to processes, services, customers and suppliers; and

Whereas, the Parties regard such information as valuable, confidential, proprietary, trade secret information and are willing to disclose it only with the understanding that this information is to be kept confidential, the Parties are willing to receive the information on this basis.

Now, therefore, in consideration of the promises and the agreement herein made, the Parties agree as follows:

1. The Parties may disclose to each other information relating to their respective operations, business strategies, financial information, technology, software, electronic data, customers, suppliers, processes, products, services, and other confidential business information solely for the purpose as set forth in this agreement.
2. The Parties agree to keep the information confidential and not to disclose the information to others without first obtaining and receiving written authorization to do so.
3. The Parties agree that disclosure of the information shall be limited to persons who have a need to know, any such person shall be informed of the confidentiality thereof and are obligated to keep it confidential. Notwithstanding the foregoing, a Party may disclose confidential information to the extent required by applicable law, regulation, subpoena, court order or governmental authority, provided that, unless legally prohibited, the receiving Party promptly notifies the disclosing Party, reasonably cooperates in seeking confidential treatment or limiting the disclosure, and discloses only the portion of the confidential information legally required.
4. The Receiving Party shall not input or otherwise provide Confidential Information to any artificial intelligence system that uses such information to train, or otherwise improve a public, shared, or third-party model. This restriction shall not prohibit use of an enterprise artificial intelligence system that does not use Confidential Information to train or improve any public or shared model and that maintains appropriate confidentiality and security controls.
5. The receiving Party shall hold and keep all confidential information related to the engagement in strict confidence and protect it using a reasonable degree of care. The receiving Party shall take commercially reasonable administrative, technical, and physical measures to prevent any unauthorized access, use, disclosure or loss of confidential information. The receiving Party shall promptly notify the disclosing Party of any actual or suspected unauthorized access, use or disclosure of confidential information and reasonably cooperate in mitigating and remediating the incident.
6. Upon request, the receiving Party shall promptly return or destroy all confidential information, including electronic copies, except for archival backup copies maintained in the ordinary course of business, or to the extent required by applicable law or regulation or pursuant to a legal hold, or bona fide record-retention policies, provided that any retained confidential information remains subject to the confidentiality obligations of this agreement.
7. The obligation of the Parties to hold the information in trust and confidence shall be for a period of five (5) years from the date of this agreement, provided, however, that obligations relating to trade secrets shall survive for so long as such information remains a trade secret under applicable law. This obligation does not apply to information that is:

- a) Already known to the Parties and provable by documents already in the Parties' possession as of the date of the execution of this agreement.
 - b) Publicly available; or
 - c) Rightfully received from a third person without accompanying secrecy obligation.
 - d) Independently developed by the receiving Party without reference to the Confidential Information.
8. The Parties acknowledge that unauthorized disclosure may cause irreparable harm and that the injured Party may seek injunctive relief in addition to any other remedies available under law.
9. **Ownership of Information.** All confidential information remains the exclusive property of the disclosing Party. Nothing contained in this Agreement grants any license, ownership interest, or other intellectual property rights except the limited right to evaluate the information for the purposes of the Parties' discussions. No ownership or license is transferred by disclosure of Confidential Information.
10. This agreement shall be governed by and construed in accordance with the laws of the state in which the non-initiating party has its principal place of business, without regard to conflict-of-laws rules. Any legal action or proceeding arising out of or relating to this agreement shall be brought exclusively in the state or federal courts located within such state, and the party initiating such action irrevocably submits to the exclusive jurisdiction of such courts and waives any objection based on venue, jurisdiction, or forum non conveniens. Both parties expressly and without limitation or exception agree to waive any right to have a jury participate in the resolution of any dispute or claim between the parties or any of their respective affiliates arising under this agreement.
11. This agreement constitutes the entire agreement between the Parties concerning its subject matter and supersedes all prior or contemporaneous discussions, communications, and agreements relating thereto. This agreement may be amended only by a written agreement signed by authorized representatives of both Parties. If any provision of this agreement is held invalid or unenforceable, that provision shall be limited or eliminated to the minimum extent necessary, and the remaining provisions shall remain in full force and effect. Neither Party may assign this agreement without the other Party's prior written consent, except to a successor in connection with a merger, reorganization, or sale of all or substantially all of its business or assets, provided that the successor agrees to be bound by this agreement.

[SUBCONTRACTOR LEGAL NAME]

Signed: **[Name]**

Title: **[Title]**

Date: **[Date]**

Strategic Operations Solutions, LLC

Signed: **Jeff Peduto**

Title: CEO & Founder

Date: **[Date]**